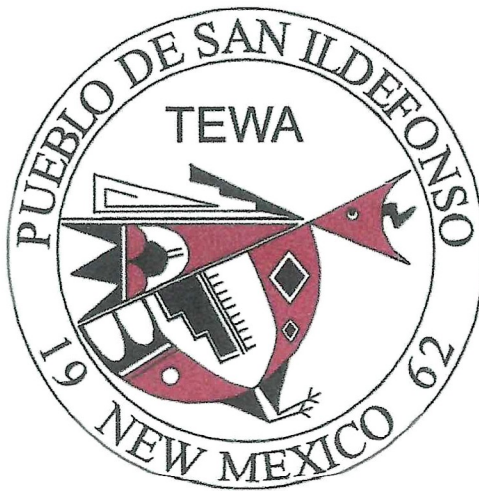


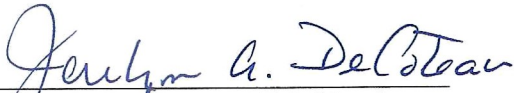
The Pueblo de San Ildefonso

Rules of Appellate Procedure

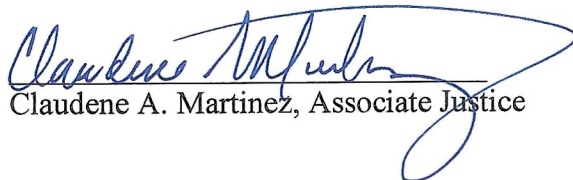


CERTIFICATE OF ADOPTION

We hereby certify that on this 17th day of July 2026, "Pueblo de San Ildefonso Rules of Appellate Procedure" were revised and approved by the Supreme Court of the Pueblo de San Ildefonso pursuant to the Pueblo de San Ildefonso Judicial Act of 2012, Chapter 4.4.1.060, (b) (3).


Jerilyn A. DeCoteau, Chief Justice


Robert F. Medina, Associate Justice


Claudene A. Martinez, Associate Justice

Pueblo de San Ildefonso
Rules of Appellate Procedure
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Rule 1. Scope of Rules/Citation to Rules

- a. These rules, adopted by the Supreme Court of the Pueblo de San Ildefonso, govern the appeal process. Where necessary to promote fairness and justice to parties, the Supreme Court may look to the Pueblo de San Ildefonso customs and traditions and the *Federal Rules of Appellate Procedure* for guidance in applying and supplementing these rules.
- b. These rules shall be liberally construed to secure a just and speedy determination of every appeal. When the single is used it includes the plural. The use of the word “him” includes all genders.
- c. These rules should be read and applied in conjunction with *The Pueblo de San Ildefonso Code of Judicial Conduct: Rules of Judicial Responsibility, Disqualification, and Removal. (Code of Judicial Conduct)*.
- d. These rules are cited as R.A.P. Rule_.

Rule 2. Composition of the Supreme Court

- a. The Supreme Court of the Pueblo de San Ildefonso shall consist of the Chief Justice and two (2) Associate Justices provided for in accordance with the *GOVERNING DOCUMENT PUEBLO DE SAN ILDEFONSO. (GOVERNING DOCUMENT)*
- b. All appeals shall be heard by the Supreme Court. When an elected or appointed Justice is not available to hear an appeal, the remaining Justices shall hear the appeal.

Rule 3. Conflicts of Interest

Any Justice with a direct personal or financial interest in the appeal before the Supreme Court shall recuse himself/herself. All such conflicts or potential conflicts of interest shall be disclosed to all parties in the appeal at the earliest

possible date and for the record. See also: *Code of Judicial Conduct: Rules of Judicial Responsibility, Disqualification and Removal.*

Rule 4. Recusal

A Justice may recuse him/herself or a party may request recusal of a specific Justice by motion to the Chief Justice of the Supreme Court with notice given to all parties. If the motion concerns the Chief Justice, the Chief Justice shall assign the matter to an Associate Justice for final determination.

Rule 5. Traditional Advisors

At the request of a party or on its own Motion, the Supreme Court may consult with and be advised by elders or traditional leaders qualified in traditional matters for guidance on the customs and traditions of the Pueblo on matters before the Court.

Rule 6. Jurisdiction and Scope of Review

The Supreme Court shall have the power to interpret the *GOVERNING DOCUMENT* and to make conclusions of law.

- a. The Chief Justice of the Supreme Court shall, when hearing an appeal, have the authority to compel the production of documents where such is deemed necessary for rendition of the Court's opinion.
- b. There shall not be a new trial in the Supreme Court.
- c. The Supreme Court may review questions regarding factual findings for abuse of discretion and review questions of law de novo.

Rule 7. Right of Appeal

- a. All parties have the right to appeal a final judgment or order of the Trial Court.
- b. Any dissatisfied party to a civil action who believes the Trial Court may have committed a legal error may appeal the judgment to the Supreme Court in the manner prescribed by these rules.
- c. Any party to a criminal action, who is dissatisfied with the verdict or sentence or due process may appeal to the Supreme Court in the manner prescribed by these rules.
- d. Within 10 calendar days after the final judgment or order, a Notice of Appeal shall be filed with the Supreme Court Clerk, together with a filing fee. The Clerk shall serve a copy of the Notice of Appeal on the opposing party.
- e. Notice of Appeal is jurisdictional and failure to timely file will result in dismissal of the appeal.
- f. The party seeking an appeal shall be referred to as the appellant; all other parties shall be referred to as the appellees. Cross-Appeals shall be permitted in accordance with these rules.
- g. In any case in which an appeal is filed, the appellant may petition the Trial Court for an order staying the judgment or order. A stay shall be granted in all cases in which it is requested unless manifest injustice would result.

Rule 8. Interlocutory Appeal by Permission

An appeal from an interlocutory order maybe sought by filing a petition for permission to appeal with the Supreme Court Clerk within ten calendar days after the entry of such order with proof of service on all other parties to the action. The petition shall contain a statement of the facts necessary to an understanding of the controlling question of law determined by the order of the Trial Court; a statement of the question itself; and a statement of the reasons why substantial basis exists for a difference of opinion on the question and why an interlocutory appeal may materially advance the termination of the litigation. The petition shall include or have attached a copy of the order relating thereto. Within ten calendar days after service of the petition, an adverse party may file an answer in opposition. (*Judicial Act*)

Rule 10. Filing Fees and Costs

- a. The filing fee for an appeal shall be in accordance with the schedule of fees.
- b. The Chief Justice of the Supreme Court may waive the filing fee upon *Motion For A Fee Waiver* by the appellant where the Chief Justice is satisfied the appellant lacks the means to pay the filing fee. The *Motion* must include an affidavit demonstrating inability to pay and must accompany the *Notice of Appeal*.

Rule 11. Computation of Time

- a. The computation of any time period in these Rules shall be in calendar days.
- b. There shall be no extension of time limits contained in these rules unless the moving party demonstrates unforeseen or emergency circumstances.

Rule 12. Time for Filing and Service of Notice of Appeal

- a. A written *Notice of Appeal* from a decision of the Trial Court must be filed with the Supreme Court Clerk within ten (10) calendar days of the date of the final judgment or order.
- b. The *Notice of Appeal* shall:
 - 1. identify the parties.
 - 2. identify the appellant(s) filing the appeal by name and address.
 - 3. identify the final judgment or order being appealed by name and case number and attach a copy.
- c. If the filing deadline date falls on a Saturday, Sunday, holiday or an official Court closure, the appeal must be filed the next working day.

- d. The party filing the appeal must file a short statement of the reason or grounds for the appeal and include a procedural and factual summary of the proceedings below.
- e. Copies of the *Notice of Appeal* shall be served upon all parties to the action by the Supreme Court Clerk. *Proof of Service* shall be noted in the file.
- f. Upon receipt of the *Notice of Appeal*, the Supreme Court Clerk shall prepare, certify and file all papers, electronic records and exhibits comprising the record of the case appealed.
- g. A separate docket shall be maintained for the Supreme Court.
- h. Either party may request all or parts of the testimonial record that is pertinent to the appeal and shall pay a cost provided for in the fee schedule.

Rule 13. Time for Filing Briefs and Memoranda

Within thirty calendar days of filing the *Notice of Appeal* or within such longer time as the Supreme Court shall allow, the appellant shall file a written brief in accordance with Rule 14.

An original and three (3) copies shall be filed with the Supreme Court Clerk and one copy shall be served upon each party or his counselor or representative. The appellees shall have thirty calendar days after receipt of the brief within which to file a response brief. Appellant(s) shall have ten calendar days within which to file a reply brief after receipt of the response brief.

Rule 14. Form of Briefs

- a. Briefs shall include the following:
 - 1. A cover page stating the name of the case; the numbers assigned to the case by the Trial Court and the Supreme Court; the name, address, telephone, and email of the party filing the document;
 - 2. A statement of the case which indicates the nature of the case, the disposition by the Trial Court and the legal issues presented to the Supreme Court;
 - 3. Separately identified legal argument for each issue presented to the Supreme Court;
 - 4. A conclusion stating precisely the relief sought;
 - 5. All pages shall be 8 ½" by 11" double spaced and consecutively numbered;
 - 6. All laws, rules, regulations and cases cited in the document shall be attached unless previously provided in the appeal;

7. No other attachments shall be permitted and will be disregarded by the Supreme Court;
 8. All briefs shall not exceed twenty (20) pages in length, excluding attachments.
- b. An appeal may be dismissed with prejudice if the appellant does not file the written brief in the time granted. An appellee is not required to file a response brief but may rely on the record before the Supreme Court.

Rule 15. Record on Appeal

The papers filed in the Trial Court, the exhibits and the transcript of the proceedings shall constitute the entire record on appeal in all cases. The Supreme Court Clerk shall certify that the appellate record constitutes the complete and entire file. The *Certification of the Record* shall be served on all of the parties.

Rule 16. Oral Argument

- a. Any party may request an oral argument. At the discretion of the Supreme Court, an oral argument may be ordered in the appeal, otherwise all cases shall be determined on the briefs and the record. The Supreme Court shall decide the order of presentation, the length of time each party is permitted for their presentation, the issues to be addressed in oral argument, and such other matters as may be necessary.
- b. The order providing *Notice of Oral Argument* shall include all such matters and shall be served on all parties at least ten (10) calendar days prior to the date set for argument. Oral arguments may be held by electronic mean.
- c. The Supreme Court shall decide all cases upon the briefs and the record, plus the oral argument, if held. At least two Justices must affirm or deny the appeal. The dissenting Justice may file a dissenting opinion stating the reason why he or she dissents.

Rule 17. Timeliness of Decisions of the Supreme Court

- a. All decisions of the Supreme Court shall be in writing and accompanied by an opinion stating the legal issues and the basis for the decision.
- b. Decisions of the Supreme Court shall be issued no later than ninety (90) calendar days after the conclusion of oral argument. If no oral argument is held, the 90 days runs from the expiration of time to file a response brief or reply brief.
- c. At the Court's discretion the time for issuing a decision may be extended, provided all parties are notified.

- c. If no decision is issued by the Supreme Court within the time designated, either party may contact the Supreme Court Clerk to determine the status of the decision. The Supreme Court Clerk shall report the status of the decision in writing to all parties.

Rule 18. Entry and Form of Judgment

- a. The decisions of the Supreme Court shall be by a majority vote. The Supreme Court may dismiss an appeal; or reverse in whole or in part and remand the final judgment or order of the Trial Court with instructions; or affirm the final judgment or order of the Trial Court.
- b. If only two (2) Justices hear an appeal and a split decision is made, the decision of the Trial Court shall be binding.
- c. All decisions of the Supreme Court shall be final according to the GOVERNING DOCUMENT and the Judicial Act.
- d. The Supreme Court Clerk shall serve all parties with a copy of the stamped decision as entered.
- e. The Supreme Court may in its discretion determine which decisions shall be published and made available. The Supreme Court's published final decisions shall constitute the common law of THE PUEBLO DE SAN ILDEFONSO and shall have precedential effect.

Rule 19. When Rehearing May be Ordered

- a. A majority of the Supreme Court Justices may order that an appeal or other proceeding be reheard by the Court. A rehearing is not favored and ordinarily will not be ordered unless:
 - 1. consideration is necessary to secure or maintain uniformity of the Court's decisions; or
 - 2. the proceeding involves a question of exceptional importance.
- b. A party may petition for a rehearing.
- c. The Supreme Court shall decide by a majority vote whether to grant the petition for rehearing. If granted, the Petitioner shall have 10 days in which to file a supporting brief of not more than 10 pages and the Respondent shall have 7 days to file a response. The Supreme Court may proceed in accordance with these rules per their discretion.

Rule 20. Interest on Judgments

In a judgment for money whatever interest is allowed by the Court shall be computed from the date the first judgment was entered by the Trial Court. Any interest accrued shall be awarded to the prevailing party. Costs of the appeal shall be ordered in the discretion of the Court.

Rule 21. Frivolous Appeals

If an appeal is determined to be frivolous, the appeal shall be dismissed and costs and fees may be awarded to the appellee. The Supreme Court may also assess expenses incurred by the Supreme Court to the appellant. If an appellant has been granted a waiver of fees, the Supreme Court may remand to the Trial Court for the imposition of a duty for community service by the appellant.

Rule 22. Certifications by the Trial Court.

The Trial Court may certify to the Supreme Court a question of law on which it seeks instruction for the proper decision of a case. The certificate shall contain a statement of the case and the facts on which the question of law arises. Only questions of law may be certified, and they shall be stated separately and with precision. The Supreme Court shall have discretion whether to accept the certified question of law. (*Judicial Act 4.4.1.060, 2. Certification*)

Rule 23. Writs of Mandamus, Prohibition, and Writs in General;

The Supreme Court shall have original jurisdiction over writs of mandamus or prohibition that involve actions or inactions by the Office of the Governor or by the Council according to provisions in the Governing Document involving fundamental questions of the Governing Document. Any citizen may have standing to bring such action provided the action or inaction substantially affects his or her rights as a citizen of the Pueblo.

The Supreme Court shall have superintending jurisdiction for writs filed against the Trial Court provided the petitioner has standing and the action involves a right or duty the Trial Court is or is not performing or has refused to perform or recognize. The filing of such writ shall not be a substitute for filing a regular appeal or an interlocutory appeal.

- a. A party may file with the Supreme Court a petition for a writ according to the following procedures:
 1. The petition shall include:
 - i. The names, addresses, titles, telephone numbers, and email of the persons or agencies against whom relief is sought;

- ii. A statement of the facts necessary to understand the issues presented;
 - iii. A statement of the issues and the relief sought;
 - iv. A statement of the reasons why the writ should be issued; and a brief in support not to exceed 5 pages;
 - v. Copies of any order, opinion, final judgment, or parts of the record essential to understanding the petition.
- 2. The Supreme Court Clerk shall serve the person or agency against whom the writ is sought within 72 hours after filing. The person against whom the writ is sought, after receipt of service, shall have five days in which to file a response and brief-in-support to show cause why the writ should not be issued.
- b. Within five days after the petition and response are filed, the Supreme Court shall determine whether the petitioner has standing to bring the action and whether the Court has jurisdiction.
- c. The Supreme Court, exercising discretion, may order an oral argument or may grant one, if requested. The Supreme Court Clerk shall notify the parties of the dates on which the oral argument is to be heard.
- d. If the petition is not acted upon within thirty days after it is filed, it shall be considered denied by operation of these Rules.

Rule 24. Writ of Habeas Corpus

- a. Procedure and Contents of the Petition
 - 1. A party may file with the Supreme Court a petition for a writ of habeas corpus for the purpose of determining if the current incarceration or commitment or future or current custody of the petitioner is in violation of the law.
 - 2. The petition shall state:
 - i. The name and location of the petitioner;
 - ii. The name and address of the person having or who will have custody of the petitioner;
 - iii. Whether the petitioner is in custody pursuant to a judgment or order of the Trial Court;
 - iv. All grounds on which the petitioner is being held unlawfully and a summary of the facts and law supporting each ground; and,
 - v. The relief the petitioner is seeking.

3. The petition shall be presented to and reviewed by the Supreme Court. If a petition does not comply substantially with the requirements of this Rule it shall be denied.
4. If the petition is accepted, the Supreme Court shall issue an Order accepting the Petition for review. The respondent or his representative shall be served with the Order to respond within the time provided.
5. The Supreme Court shall review the petition, response, and determine whether adequate relief can be granted or whether an evidentiary hearing is necessary. If an evidentiary hearing is granted, it shall be held within 30 days of filing of the Response to the writ. If an evidentiary hearing is not required, the Supreme Court shall dispose of the petition as justice requires.
6. The Supreme Court will decide the writ within 20 days.
7. In the event the petition is denied, the decision is final.

b. Post Conviction Relief Under Habeas Corpus

1. In addition to the Rules herein, a person convicted of a crime under the laws of the Pueblo de San Ildefonso who has exhausted the regular appeals process or whose appeal time has lapsed may file a petition for habeas corpus in the Supreme Court for the following reasons:
 - i. new evidence has come forth that may change the outcome of the original conviction;
 - ii. new rule of law has been issued by a federal or state court or the Supreme Court of the Pueblo that may change the outcome of the original conviction.
2. Or on such other grounds that was not presented or briefed in the original appellate action and there is good cause for such failure. All issues not presented or briefed in an original appeal are waived including whether an appeal was filed.
3. The petition must contain the date of the judgment or conviction, and the length of sentence and current confinement, and whether an appeal was filed or whether all appeals have been exhausted.

Rule 25. Suspension of Rules

On its own or a party's motion, the Supreme Court may, in order to expedite its decision or for other good cause, suspend any provision of these Rules in a

particular case and order proceedings as it directs, except as provided in Rule 12 regarding time for filing a notice of appeal.

Rule 26. Procedure for Promulgation

The Justices of the Supreme Court shall review these Appellate Rules as necessary and may amend these Rules.